

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

GARRISON MASON MORFIT,

Petitioner

VS.

ANNA MIEKE ORTIZ MORFIT,

Respondent

) Case Number: FDI-19-791709

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: ATTORNEY FEES AND COSTS; ADJUDICATION OF OMITTED
COMMUNITY ASSET UNDER FAMILY CODE 2556, IN THE ALTERNATIVE, PARTIAL SET-
ASIDE OF JUDGMENT UNDER FAMILY CODE 2122(A), 2122(F); BREACH OF FIDUCIARY
DUTY REMEDIES UNDER FAMILY CODE 1101(H); ATTORNEY'S FEES AND SANCTIONS
UNDER FC 1101(G), 271, AND ANY OTHER APPLICABLE AUTHORITY; REQUEST FOR ORDER
TEMPORARY EMERGENCY ORDER, CONFIRM THE STAY UNDER CCP 916 OR, IN THE
ALTERNATIVE THAT COURT CONTINUE THE MAY 5, 2026 HEARING TO EITHER TO ONE
OF THE FOLLOWING DATES : 6/2/26 OR 6/23/26

TENTATIVE RULING

**The parties are ordered to appear in person or via Zoom video. If a party chooses to appear by
Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San
Francisco Family Court set forth above.**

A. Procedural History

- 1) Petitioner Garrison Morfit (Husband) and Respondent Anna Morfit (Wife) married on 9/20/2003
and separated on 3/15/2019, for a marriage of 15 years and 5 months. The parties have four

1 children, H.M. (DOB: 7/12/2005, age 20), B.G. (DOB: 10/16/2007, age 18), E.M. (DOB:
2 11/26/2009, age 16), and G.M. (DOB: 9/12/2015, age 10).

3 2) On 3/30/2026, Wife filed a Request for Order. Wife states Husband held 15.75% GP Points in
4 ValueAct Capital general-partner enterprise as of “December 31, 2020, the stipulated valuation
5 date,” and that “this ownership interest — distinct from the capital accounts already divided
6 under the December 23, 2024 Stipulation — was never valued or adjudicated by the Court at the
7 nine-day trial in 2023 that resulted in the Statement of Decision dated September 18, 2023.” Wife
8 seeks the following orders:

9 a. Adjudication of Omitted Community Asset. A finding that Mason Morfit’s GP Points —
10 representing his ownership interest in ValueAct Holdings GP, LLC, ValueAct Holdings,
11 LP, and ValueAct Holdings II, LP (collectively, the “ValueAct GP enterprise”) —
12 constitute an omitted community property asset under Family Code § 2556, and that the
13 Court retains continuing jurisdiction to adjudicate and divide this asset.

14 b. Compelled Production of ValueAct Documents. An order compelling Mason to produce
15 all withheld ValueAct documents within 30 days, including: (a) all GP agreements and
16 amendments (including the ValueAct Holdings II LP Agreement); (b) the Houlihan
17 Lokey valuation files; (c) all historical and current employment agreements, including
18 any agreements executed on or after January 1, 2025; (d) complete K-1 packages and
19 compensation schedules; and (e) internal financial records from 2003 forward not
20 previously produced.

21 c. Characterization of GP Points as Ownership Interests. A determination that Mason’s GP
22 Points constitute ownership interests in the ValueAct GP enterprise — not mere
23 compensation or employment rights — and that such interests are community property
24 subject to division.

25 d. Valuation of the ValueAct GP Enterprise. An order for valuation of the ValueAct GP
26 enterprise as of December 31, 2020 (the stipulated valuation date), by one of the
27 following mechanisms: (a) adoption of David Gresen’s valuation (approximately \$201–
28 \$211 million for Mason’s 15.75% interest); (b) appointment of a neutral forensic expert;
29 or (c) a limited evidentiary hearing on valuation.

- e. Award of Anna's Community Property Share. Calculation and award to Anna of her community property share of the GP enterprise, equal to one-half of Mason's proportional ownership interest, through cash equalization, asset transfer, secured promissory note, or such other mechanism as the Court deems appropriate.
- f. Direct Payment of GP-Derived Distributions. An order requiring direct payment to Anna of her one-half share of all GP-derived distributions — including management fees, performance fee allocations, K-1 income, and tail distributions — received by Mason from December 31, 2020 forward until full equalization is achieved.
- g. Tail Rights and Sale-Participation Rights. A determination of Anna's entitlement to one-half of tail rights and sale-participation rights previously reserved by the Court, with appropriate payment mechanisms ordered.
- h. Alternative: Partial Set-Aside of Judgment. In the alternative, an order setting aside the property-division portions of the judgment under Family Code §§ 2122(a) and 2122(f) based on fraud, perjury, and disclosure violations, and ordering new valuation proceedings with complete documentary evidence.
- i. Enhanced Award Under Family Code § 1101(h). An award to Anna of 50 to 100 percent of the ValueAct GP enterprise under Family Code § 1101(h) as a community asset concealed through breach of fiduciary duty involving fraud, oppression, and malice.
- j. Constructive Trust. Imposition of a constructive trust over Anna's fifty-percent community interest in Mason's GP Points and all proceeds therefrom, with Mason holding Anna's share as constructive trustee and required to pay distributions directly to Anna as received.
- k. Quarterly Accountings. An order requiring quarterly accountings and reporting by Mason of all ValueAct distributions, ownership changes, and compliance with Court orders.
- l. Attorney's Fees and Costs. An award to Anna of all attorney's fees and costs incurred in post-judgment discovery and in bringing this motion, payable directly by Mason under Family Code §§ 1101(h) and 271.

- m. Monetary Sanctions Under Family Code § 271. Imposition of monetary sanctions under Family Code § 271 in an amount between \$500,000 and \$1,000,000 for conduct by Mason and/or his counsel that frustrated settlement and increased litigation costs.
 - n. Independent Auditor / Special Master. Appointment of an independent auditor or special master to monitor compliance, verify distributions, and ensure ongoing transparency regarding Mason's ValueAct interests and obligations.
 - o. Judgment Lien. An order securing Anna's interest through a judgment lien on Mason's ValueAct GP Points in the amount of her community property share.
 - p. Restraining Order Against Transfer. An order prohibiting Mason from transferring, pledging, or encumbering his GP interests without prior Court approval and adequate provision for Anna's interest.
 - q. Contempt Provisions. A provision that any violation of the Court's orders constitutes contempt of court, subject to monetary sanctions, attorney's fees, and such other remedies as the Court deems appropriate.
 - r. Further Relief. Such other and further relief as the Court deems just and proper to ensure complete and fair division of the community estate and to remedy Mason's years of concealment, material misrepresentations, and breach of fiduciary duty.
- 3) On 3/30/2026, Wife also filed a Notice to Present Live Testimony under Family Code section 217.
 - 4) The hearing on Wife's 3/30/2026 Request for Order was originally set for 5/5/2026.
 - 5) On 4/15/2026, Husband filed an ex parte Request for Order. Husband contends the subject matter of Wife's 3/30/2026 Request for Order was "extensively litigated at trial over the course of ten days of trial proceedings spanning from May 2, 2023, through June 1, 2023 (Trial Days 1 through 10)." Husband states, "Those proceedings resulted in a comprehensive Statement of Decision issued September 18, 2023, in which this Court made express findings regarding Petitioner's interest in ValueAct Capital, including a finding that 'The community does not have an ownership interest in the property or assets of VAC, including any goodwill.'...The record of the trial is replete with references to the GP points she now alleges were omitted assets and those same GP points were the subject of Respondent's expert's opinion at trial, which opinion was

1 rejected. Respondent's own counsel's closing statement sought, amongst other things, an equal
2 division of the GP points which the Court denied...Respondent has filed a Notice of Appeal
3 (Court of Appeal Case No. A173076) challenging this Court's trial findings as they pertain to
4 ValueAct Capital, including the Court's findings regarding Petitioner's GP interest. That appeal is
5 presently pending." Husband requested that the Court continue the 5/5/2026 hearing to a date his
6 attorney is available and to order the parties to brief whether Code of Civil Procedure section 916
7 imposes a stay on the Court's ability to adjudicate Wife's 3/30/2026 Request for Order while her
8 appeal is pending.

9 6) On 4/14/2026, Wife filed a Responsive Declaration stating that the 5/5/2026 hearing date will
10 simply be a setting hearing for a long-cause hearing. Wife also argues that Code of Civil
11 Procedure section 916 does not stay her motion. Wife argues, "The pending appeal addresses one
12 issue: whether the trial court erred as a matter of law in excluding goodwill from the community's
13 interest in ValueAct. Respondent's motion addresses a different asset — the GP enterprise
14 ownership interest — under independent post-judgment statutory remedies based on documents
15 produced for the first time on February 27, 2026. These are different assets, different evidence,
16 and different legal theories. The stay does not apply." Wife also states, "Even if the Court were
17 inclined to find that any portion of the motion implicates § 916 — which Respondent disputes —
18 the proper remedy is not a blanket stay. The FC §§ 2122(a) and 1101(h) claims arise entirely from
19 post-judgment discovered evidence and are independent of the appellate record. The one-year
20 fraud SOL under § 2122(a) expires February 27, 2027. The Court should allow those claims to
21 proceed regardless of any ruling on § 916."

22 7) Per the Temporary Emergency (Ex Parte) Orders filed 4/15/2026, the Court granted Husband's
23 request to continue the 5/5/2026 hearing to 6/23/2026. The Court ordered Wife to file and serve
24 briefing on the issue of whether Code of Civil Procedure section 916 applies 16 Court days in
25 advance of 6/23/2026, Husband to file and serve briefing on this issue 9 Court days before the
26 hearing, and for Wife to file and serve a reply 5 Court days in advance of the hearing.

27 8) On 6/1/2026, Wife filed a "Brief on Inapplicability of CCP §916."
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- 1 9) On 6/4/2026, Husband filed an ex parte Request for Order asking the Court to strike Wife's
2 6/1/2026 briefing as untimely and deny Wife's motion or continue the 6/23/2026 hearing to
3 6/30/2026 and sanction Wife and / or her counsel \$10,000.
- 4 10) On 6/4/2026, Wife filed a Responsive Declaration to Husband's ex parte Request for Order
5 noting that her briefing was just one court day late and that the appropriate relief would be to
6 provide Husband additional time to file his brief. Wife requests \$10,000 in attorney's fees under
7 Family Code section 271.
- 8 11) Per the Temporary Emergency (Ex Parte) Orders filed 6/4/2026, the Court denied Husband's
9 request to strike Wife's 6/1/2026 briefing, deny Wife's motion, and continue the 6/23/2026
10 hearing. The Court noted that both parties' requests for sanctions would be heard on 6/23/2026.
- 11 12) On 6/11/2026, Husband filed a Memorandum of Points and Authorities in Support of Automatic
12 Stay along with a Request for Judicial Notice.
- 13 13) On 6/15/2026, Wife filed a Reply Brief on Inapplicability of CCP 916.

14 **B. Findings and Order**

- 15 1) **The parties are ordered to appear in person or via Zoom video. If a party chooses to appear**
16 **by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in**
17 **San Francisco Family Court set forth above.**
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